

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
BRITTANY GREEN,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER MARK MATIAS (shield # 9142),
POLICE OFFICER JANE DOE,

Defendants.

-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
November 1, 2024



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiffs
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

Index No. _____
Purchased 11-1-24

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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BRITTANY GREEN,

Plaintiff

Index No.

Verified Complaint

- against -

THE CITY OF NEW YORK,
POLICE OFFICER MARK MATIAS (shield # 9142),
POLICE OFFICER JANE DOE,

Defendants.

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Plaintiff BRITTANY GREEN, by her attorneys, THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the Defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff BRITTANY GREEN was a resident of the State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, the NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant, POLICE OFFICER MARK MATIAS (shield # 9142) ("P.O. MATIAS"), was and is a police officer employed by Defendants.
5. At all times hereinafter mentioned, Defendant, POLICE OFFICER JANE DOE ("P.O.

DOE”) was and is a police officer employed by Defendants.

BACKGROUND

6. On August 20, 2023, at approximately 11:00 p.m., in the vicinity of Westchester Avenue and Eagle Avenue in Bronx County, without just cause or provocation, Defendants, including P.O. MATIAS, smashed the driver’s side window of a vehicle in which Plaintiff was a front seat passenger.

7. The glass from the vehicle’s window cut Plaintiff’s right thigh. Some of the shattered glass remained stuck in Plaintiff’s skin which caused Plaintiff substantial pain.

8. Shortly after the glass shattered, Plaintiff exited the vehicle. At that time, P.O. DOE pointed a gun at Plaintiff’s head. Plaintiff defecated on herself at the moment when P.O. DOE pointed a gun at Plaintiff’s head.

9. Defendants violently handcuffed Plaintiff. Plaintiff was taken to a police precinct. Plaintiff was then taken to a local hospital to be treated for her injuries, as well as to be treated for the asthma she experienced. After the hospital, Plaintiff was taken back to a police precinct where Plaintiff was searched and forced to remain inside of a holding cell.

10. Thereafter, Plaintiff was taken to Bronx County Central Booking. Plaintiff remained incarcerated until her release from custody on or about August 22, 2023.

11. Defendants intentionally and falsely accused Plaintiff of having committed the crimes of Assault in the Second Degree and related charges.

12. On or about August 22, 2023, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff commenced.

13. Plaintiff had to defend against false charges until the criminal matter was terminated in her favor on March 18, 2024.

PROCEDURAL POSTURE

14. On September 11, 2023, Plaintiff served a Notice of Claim in writing sworn to on her behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendants of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable. Plaintiff filed an Amended Notice of Claim on May 1, 2024.

15. More than thirty days have elapsed since service of said notices and Defendant CITY has failed to pay or adjust these claims.

16. A 50-H hearing has been held for Plaintiff.

17. This action has been commenced within one year and ninety days after the cause of action accrued.

18. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

19. Paragraphs 1-18 are incorporated by reference as fully set forth herein.

20. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 6-13, and Plaintiff did not consent to that arrest or confinement.

21. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

22. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.

24. In arresting Plaintiff, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

25. The Defendants, including P.O. MATIAS, generated police paperwork that contained falsehoods and inaccuracies—including the false claim that Plaintiff assaulted P.O. MATIAS and the false claim that Plaintiff drove a vehicle into a police vehicle.

26. Upon information and belief, P.O. MATIAS and P.O. DOE provided the Bronx County District Attorney's Office with knowingly false information—including, but not limited to, the false claim that Plaintiff "tried to move a vehicle from the scene".

27. The criminal case commenced on or about August 22, 2023. All charges pending against Plaintiff were dismissed and sealed upon the application of the Bronx County District Attorney on March 18, 2024.

28. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION: BATTERY

29. Paragraphs 1-28 are incorporated by reference as though fully set forth herein.

30. When P.O. MATIAS caused glass to strike Plaintiff by breaking a car window, and when P.O. DOE violently grabbed Plaintiff and arrested Plaintiff, they subjected Plaintiff to a harmful or offensive bodily contact. P.O. MATIAS and P.O. DOE intended to make that contact without the consent of Plaintiff.

31. As a result of being battered by the Defendants, including P.O. MATIAS and P.O. DOE,

Plaintiff sustained multiple injuries, including substantial pain to her chest and right thigh.

Plaintiff also sustained loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

FOURTH CAUSE OF ACTION: ASSAULT

32. Paragraphs 1-31 are incorporated by reference as though fully set forth herein.

33. P.O. DOE, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by approaching Plaintiff, pointing a gun at Plaintiff's head and violently handcuffing Plaintiff. P.O. DOE's actions toward Plaintiff caused Plaintiff to defecate on herself.

34. P.O. MATIAS, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by smashing a vehicle's window--which caused glass to strike Plaintiff.

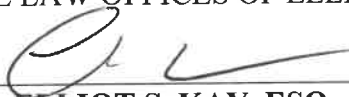
35. As a result of being assaulted by the Defendants, Plaintiff sustained multiple injuries, including substantial pain to her chest and right thigh. Plaintiff also sustained loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with punitive damages.

Dated: New York, NY
November 1, 2024

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY

A handwritten signature in black ink, appearing to read 'E. Kay', is written over a horizontal line.

BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiffs

295 Madison Avenue, 12th Floor

New York, NY 10017

(212) 939-7251

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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
November 1, 2024


ELLIOT S. KAY